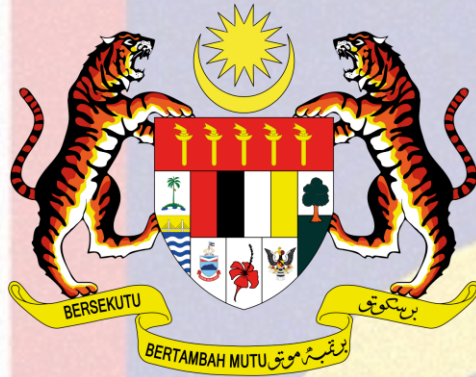




KEMENTERIAN LUAR NEGERI

ARAHAN PERSENDIRIAN

PRIVILEGED INSTRUCTIONS

**Ministry of Foreign Affairs
MALAYSIA**



Privileged Instructions

Fundamental Principles

- Restore peace and tranquility within the Southeast Asian region.
- Protect and maintain rights of sovereignty in accordance with established international conventions, to include the United Nations Convention on the Law of the Sea (UNCLOS).

Desired End State(s):

- Peaceful resolution of South China Sea (SCS) sovereignty issues through joint and/or multilateral efforts.
- Increased cooperation at all levels between the nations of the SCS and the People's Republic of China.
- UN Convention on the Law of the Sea (UNCLOS) tenets and obligations observed, respected, and adhered to by all nations; specifically, the tenets under Article 87, Freedom of the High Seas, as regards Freedom of Navigation and Right of Innocent Passage (Articles 17, 18 & 19).
- Increased joint commercial ventures within the SCS.

Principle Negotiation Positions

- Each nation must respect the sovereignty of all recognized nations and their rights regarding coastal regions, maritime and Exclusive Economic Zones, and verifiable claims to islands.
- The threat of, or use of, force by any nation is counterproductive and must be avoided at all costs. However, every nation has the right to protect its citizens and territory against any, and all, legitimate threats.
- The problems regarding maritime and territorial claims must be resolved by peaceful means through multilateral negotiations, never through military, economic or political coercion.
- We will compartmentalize our current differences with Beijing so as not to adversely affect these talks or our ability to maintain the commercial vibrancy of our economy.
- Our relations with nations external to ASEAN will not trump our support for Brunei, Indonesia, the Philippines, and Vietnam. Though the Philippine's claims fail to meet the definitions of land formations under UNCLOS. Our position regarding legally verifiable claims remains consistent with the PCA award and the precedent it sets for all additional claims within the region.
- Achieving multilateral solutions between nations, with valid SCS claims, is the preferred method of establishing sustainable solutions. Involving third parties as "trusted partners" can play an important role in achieving these solutions.
- All external negotiating partners – India, Japan, and the United States – should first consult with the ASEAN nations involved. It is disrespectful for these external nations to proceed in any other manner.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: For our fellow Southeast Asian nations and ASEAN members, national pride and international respect are at stake. The Philippines and Vietnam have continued to be frustrated at ASEAN's inability to articulate a stated joint position on the SCS disputes. They see Chinese influence on other member states as the driving cause. They view the organization as being powerless to moderate, or alter, China's overbearing behavior. Along with Indonesia, we must convince them that in the long-run multilateralism is the best method of dealing with the bulk of regional issues. Offer that a combination of bilateral and multilateral actions and agreements along with bilateral and multilateral alliances, with external powers, can bring security and regional stability beyond the scope of ASEAN and its member states. Enlist Indonesia in helping to reinforce the claims of the Philippines and Vietnam, to the benefit of our own positions. Reject any notion that a state enjoys historic rights in the SCS, or other sovereign rights or jurisdiction, with respect to the maritime areas. Any claims that are contrary to UNCLOS that exceed the geographic and substantive limits of maritime entitlements are invalid.

China: While China has agreed to participate in these negotiations, it is not interested in a solution that impinges on its declared ten-dashed line boundary. The PCA award denied the legitimacy of this position and thus it remains unacceptable. We expect the Chinese will talk about problems that exist, but it is unlikely that they will be open to proposals or compromises that might lead to lasting solutions. Chinese leaders play for time rather than compromise, for they see time as on their side. You can accept that China will prefer bilateral negotiations vice multilateral. They want to avoid being "ganged" up on and "singled out" by most states. In a bilateral setting, they feel they can bully smaller states and drive wedges between them.

Try to seek what short-term measures they are willing to accept short of an overarching solution. Express to them that the maintenance of regional stability and security is of paramount importance, certainly to Beijing. Express in firm terms that no nation can, or will, be permitted to impose its will on any other nation. Remind Beijing that it has signed the ASEAN Treaty of Amity and Cooperation (TAC) and the 2002 SCS Declaration of Conduct that commit it to the peaceful resolution of all problems with ASEAN member nations. The Chinese certainly understand that a situation that allows aggressive, provocative or coercive acts to occur is simply unacceptable to any peaceful nation or for peace in the region. Peaceful resolution to all claims within the SCS is of paramount importance to enable progress in energy exploration/exploitation. Our current cooperative exploitation of energy resources will not occur under a constant threat of military incursions and assaults.

Brunei, The Philippines, and Vietnam: Reassure that we are supportive of their positions against China's nine-dashed line claim, insofar as their claims can be verified under UNCLOS. Re-emphasize that ASEAN remains a uniquely valuable organization that has achieved great things over its history, and of their valuable place within the Association. Seek to convince them that, of any other nation here, we are best suited to act as their primary intermediary with China. If one or all agree, request they provide the primary issues they would like us to present to the Chinese delegation either on their behalf, or preferably jointly with them. We are open to building multilateral positions within these negotiations that might allow all delegations to unite pressure on the Chinese delegation with one voice. Either through multilateral talks, which we prefer, or through bilateral talks as the Chinese prefer. Enquire about the possibility of discussing specific confidence building measures, such as suspension of military patrols, increased economic cooperation, and mutual respect for EEZs.

Indonesia: Our current disagreements over Ambalat and maritime borders in the Straits of Malacca should be minimized during these talks. Our focus with Indonesia is to bring them into the fold with other ASEAN states to present a united front to China.

United States: In your talks with the U.S. delegation, thank them for their continued commitment to the region, their support for ASEAN and its member states, and for our revitalized partnership. Inform them that we consider ourselves to be in the best position to move these negotiations towards a peaceful resolution, given our excellent relations with the claimants. Emphasize that they are essential in supporting the Philippines and Vietnam in their own talks with China, but that assumes that their positions support our own. To ensure that we send the same message to China, and that we understand where China is on issues, meet with the U.S. delegation on a regular basis to compare notes and adjust positions and strategies. Failing that, seek to discover what their negotiation strategy is and if it harmonizes with ours support it, if not, seek changes to it that we can live with.

Regarding their talks with the Chinese delegation, emphasize that the U.S. should point out the continued importance of ASEAN as the primary multilateral regional venue for the discussion and resolution of all regional problems. Determine what actions, if any, within the SCS might provoke a U.S. military response in support of their mutual defense treaty with the Philippines. Though we agree with the U.S.'s stance on the right of innocent passage and freedom of navigation emphasize the overarching need for restraint to preserve peace and stability in the SCS.

India: Emphasize to the Indian delegation that they should support us as the lead for these negotiations, given our excellent relations with all parties, especially as concerns China. As with your talks with the United States, emphasize the need for a united effort with their support. Remind them of their precarious economic position with China. The continuance of peace will help stabilize all aspects of their relationship with Beijing. Seek to underpin their economic position by offering the possibility of significantly increased trade with ASEAN members.

Japan: In your talks with the Japanese delegation, seek to enlist their support for our lead, as laid out above. As with your talks with the U.S., emphasize the need for a united effort with their support. Seek additional Japanese pressure on China to temporize its behavior by emphasizing their increased and inextricable economic ties. Japan is in a unique position of influence in this regard. Trade and investment ties led to the de-escalation of their tensions over the Senkakus. Seek to understand their position about the various claims by China, the Philippines, and Vietnam, and what they see as an equitable solution.